

**IN THE COURT OF COMMON PLEAS
KNOX COUNTY, OHIO**

State of Ohio, ex rel. Dave Yost,
Attorney General,

Plaintiff,

Case No. 20IN006-149

v.

JUDGE JAMES KIMBLER

The Landings Property Association, Inc., *et al.*,

Defendants.

Mullins Bros., Ltd.,

Defendant/
Third-Party Plaintiff,

v.

Carol A. Didinger, Trustee, *et al.*,

Third-Party Defendants.

**LONG DEFENDANTS' REQUESTS FOR PRODUCTION OF DOCUMENTS TO
DEFENDANT/THIRD-PARTY PLAINTIFF MULLINS BROS., LTD.**

The Long Defendants¹ hereby request, pursuant to Rules 26 and 34 of the Ohio Rules of Civil Procedure, that defendant/third-party plaintiff Mullins Bros., Ltd. ("Mullins"), produce and to permit Plaintiff to inspect and copy the documents requested hereby. Mullins shall serve its

¹ Angela J. Arumpanayil, Trustee; Al A. Balaa; Deborah Banda, Enon Banda; Cary S. Beck; Erika D. Beck; Andrea Belcher; Kenneth Belcher; Anita Bird, Trustee; Robert Boyd; Janet Boyd; Eric Lee Brown; Revecca M. Buckwalter; Aaron Burak; Allison Burak; Edwin L. Cable; Sandra M. Cable; Chu-Hsiang Chen; Yong-Hwa Chen; Karen L. Cherup; Matthew A. Cherup; Joseph R. Christopher; Cheryl K. Christopher; Christopher A. Clark; Kelly L. Clark; Marcell Codispoti; Peggy Codispoti; Paula C. Compton-Solie; Edward L. Cosby; Janice Cosby, Trustees; Derk D. Demaree; Anita M. Demaree; Joseph M. Depolo; Robin L. Depolo; Carol A. Didinger, Trustee; Mark Driftmyer, Trustee; Linda L. Fritz; Marilou M. Fritz; Peggy A. Gaddis; Donald L. Garvic; Andreas Giakoumas; Ypatia Giakoumas; James Goodrich; Diane Goodrich; Carolyn Gray; Gary Gray; Adrienne D. Harris; Jeffry D. Harris; Bharon Hoag; Heather Hoag; Shane Alan Kinton, Trustee; Laurie Ann Kirkpatrick, Trustee; Jennifer Lebold; Robert S. Lebold; Richard Littleton; Vicki Littleton; Mark A. Long; Denise A. Long; Jesse L. Marlow; Jane C. Marlow; Hewlet McFarlane; Angela N. Merryman; Scott T. Miglin; Susan D. Miglin; Mount Vernon Nazarene University; Stephen D. Mullendore; Jeanne C. Mullendore, Trustees; Chetan I. Patel; Chetna C. Patel; Douglas P. Peterson; Diana L. Peterson; Philip B. Petrie; Priscilla J. Petrie; Randolph B. Plasse; Tina M. Plasse; Bradley Porter; Tonya Porter; Brian Przeracki; Kenneth Rhoades; Mary Marjory Rhoades; Ralph Shafer; Mary Margaret Snow; Matthew Snow; Megan Snow; Phil Stopher; Ellen Stopher; Jeffrey Strickland; Rachel Strickland; Nancy Stull; Rodger Stull; Mark S. Tuel; Michael Ulrey; Rosemary Ulrey; Lawrence Vail; Nancy Vail; Alexander Varughese; Marcia J. Varughese; Brad Whitaker; Leslie Whitaker; Andrea White; Dianne L. Williams; Margaret B. Williams; and Timothy J. Williams

response to this request and produce such documents within twenty-eight (28) days, or such shorter time as may be agreed upon between the parties or by order of the court, to the offices of Eastman & Smith Ltd, 100 East Broad Street, Suite 2100, Columbus, Ohio 43215. Said response and document production shall be supplemented in accordance with Rule 26(E) of the Ohio Rules of Civil Procedure.

DEFINITIONS

1. “You” and “your” refers to Mullins Bros. Ltd.
2. “Documents” means all writings and things of any nature whatsoever, including originals and all non-identical copies and drafts thereof, in your possession, custody or control, regardless of where located, and includes, but is not limited to, contracts, agreements, memoranda, notes, correspondence, letters, communications, facsimiles, e-mails, telegrams, teletypes, telecopies, transmissions, messages (including, but not limited to, records, reports or memoranda of telephone calls and conversations), reports, studies, summaries, analyses, minutes, diaries, calendars, logs, notes, instructions, charts, tables, brochures, records, orders, invoices, statements, bills, books of account, ledgers, financial statements, forecasts, work papers, notebooks, translations, photographs, drawings, tape recordings, computer-stored information which can be retrieved or placed into reasonably usable form, written communications and written evidence of oral communications, and any other “document” from which information can be obtained or translated, if necessary, by you through detection devices into reasonably usable form, the production of which may be required by Rule 34 of the Ohio Rules of Civil Procedure. In all cases where originals and/or non-identical copies are not available, “documents” also means identical copies of original documents and copies of non-identical copies.
3. “And” as well as “or” shall be construed disjunctively or conjunctively so as to bring within the scope of each request all documents, writings and things which might otherwise

be construed to be outside its scope.

4. The use herein of the singular form of any noun or pronoun shall include where appropriate the plural thereof; the use herein of the masculine gender shall include where appropriate the feminine.

5. The term “person” as used herein shall mean an individual, corporation, partnership, or association, or any other business or governmental entity.

6. The terms “record,” “reflect” and “relate to” are intended to have the broadest possible scope so that all documents, including drafts, are included if they in any way constitute, contain, pertain to or mention the indicated subject or document. Whenever a document provides part, but less than all, of the information requested, such document should be produced along with all other documents that are related.

7. As used herein, the word “or” is inclusive, referring to any one or more of the disjoined words or phrases and “any” and “all” also include “each and every.” The term “and” should not be construed to exclude from production any document simply because not every subject called for is discussed in the document. All references to the singular in this request shall be deemed to include the plural, and all references to the plural shall be deemed to include the singular. All references to the masculine gender shall be deemed to include the feminine and neuter.

8. “Dam” or “The Dam” refers to the Knox Cattle Company Dam located on a tributary to Center Run in Knox County, Monroe Township, Ohio.

9. “Lake” or “The Lake” is the reservoir created by the Dam.

10. “The Phase VII Declaration” means the *Declaration of Building and Development Restrictions for the Landing Development Phase VII*, Revised filed with the Knox County Recorder on March 22, 2005, at File Number 2005-00002853, Book No. 935, Page No. 640.

11. “The Phase VIII Declaration” means the *Declaration of Building and Development Restrictions for the Landing Development Phase VIII* filed with the Knox County Recorder on March 13, 2007, File Number 2007-00002401, Book No. 1069, Page No. 118.

12. “The Phase VII Development” means the land in *The Landing Development, Phase VII*, as described in the Phase VII Declaration and recorded in Plat Cabinet C, Page 24, of the Knox County, Ohio, Plat Records.

13. “The Phase VIII Development” means the land in *The Landing Development, Phase VIII*, as described in the Phase VIII Declaration and recorded in Plat Cabinet C, Page 60, of the Knox County, Ohio, Plat Records.

14. “This matter,” “this litigation,” “this action,” or “this case” mean case action number 20IN06-149, captioned *State of Ohio ex rel. Dave Yost, Ohio Attorney General v. The Landings Property Owners Association, Inc., et al.*, presently pending before the Knox County Common Pleas Court of Ohio.

15. “Mullins Bros.” means Mullins Bros., Ltd.

16. “Cross-Claim” means the Cross-Claim asserted by Mullins Bros., Ltd. in this litigation against The Landings Phase VII Property Owners, and The Landings Phase VIII Property Owners.

17. The “Landings Phase VII Property Owners” means those individuals who own lots in The Landing Development, Phase VII, and who are listed in Exhibit 1 to the Third Amended Complaint filed in this litigation.

18. The “Landings Phase VIII Property Owners” means those individuals who own lots in The Landing Development, Phase VIII, and who are listed in Exhibit 1 to the Third Amended Complaint filed in this litigation.

19. The “Landings Defendants” means The Landings Phase VII Property Owners, and The Landings Phase VIII Property Owners, collectively.

20. The “Long Defendants” means those Landings Defendants who are identified in footnote 1 of this Request.

INSTRUCTIONS

A. Each request herein shall be construed independently and shall not be limited by reference to any other request.

B. If you contend that any document requested to be produced for inspection and copying is protected from disclosure by virtue of a privilege, you must provide the following with respect to each such document:

- (i) The type of each such document (e.g., letter, memoranda, telegram, telefax, notes or memoranda of telephone conversations, etc.);
- (ii) The date of each such document;
- (iii) The author of each such document;
- (iv) The person to whom such document was directed;
- (v) The person who received a copy of each such document; and
- (vi) The general subject matter of each such document.

C. With respect to each document which you claim is protected from disclosure by virtue of a privilege, as provided for in the foregoing instruction, provide as part of such description thereof:

- (i) Each privilege whereby you contend the contents of such document are protected from disclosure; and
- (ii) Each and every fact upon which you rely to support such claim.

D. Documents No Longer in Possession, Custody or Control. If any document described in this request was, but no longer is, in your possession, or subject to your custody or control, or in existence, state whether:

- (i) it is missing or lost;
- (ii) it has been destroyed;
- (iii) it has been transferred, voluntarily or involuntarily, to others; or
- (iv) it has been disposed of otherwise.

In each instance, explain the circumstances surrounding such disposition and identify the person(s) directly or authorizing same, and the date(s) thereof. Identify each document by listing its author, his address, type (e.g., letter, memorandum, telegram, chart, photographs, etc.), date, recipient, subject matter, present location(s) and custodian(s), and state whether the document (or a copy) is still in existence.

E. Identification of Documents Produced. All documents covered in this request shall be produced in an orderly manner (and with appropriate markings or other identification) so that Plaintiff and his attorneys will be able to identify the source of the document, the file in which it was maintained, the person to whom the file belonged, and the number of this request to which it responds.

REQUEST FOR PRODUCTION OF DOCUMENTS

DOCUMENT REQUEST NO. 1.

All documents supporting, related to, touching upon, mentioning, or in any way reflecting upon your allegation in paragraph 9 of the Cross-Claim that all Landings Defendants have an ownership interest in the Dam and the Lake by virtue of the restrictive covenants placed on their respective properties.

RESPONSE:

DOCUMENT REQUEST NO. 2.

All documents supporting, related to, touching upon, mentioning, or in any way reflecting upon your allegation in paragraph 9 of the Cross-Claim that all Landings Defendants are “owners” of the Dam.

RESPONSE:

DOCUMENT REQUEST NO. 3.

All documents supporting, related to, touching upon, mentioning, or in any way reflecting upon your allegation in paragraph 36 of the Cross-Claim that the incongruity between the names the Landings Common Area Association, Inc. and The Landings Property Owners Association, Inc. is a drafting or scrivener’s error.

RESPONSE:

DOCUMENT REQUEST NO. 4.

All documents supporting, related to, touching upon, mentioning, or in any way reflecting upon your allegation in paragraph 37 of the Cross-Claim.

RESPONSE:

DOCUMENT REQUEST NO. 5.

All documents supporting, related to, touching upon, mentioning, or in any way reflecting upon your allegation in paragraph 38 of the Cross-Claim.

RESPONSE:

DOCUMENT REQUEST NO. 6.

All documents supporting, related to, touching upon, mentioning, or in any way reflecting upon your allegation in paragraph 46 of the Cross-Claim.

RESPONSE:

DOCUMENT REQUEST NO. 7.

All documents supporting, related to, touching upon, mentioning, or in any way reflecting upon your allegation in paragraph 48 of the Cross-Claim.

RESPONSE:

DOCUMENT REQUEST NO. 8.

All documents supporting, related to, touching upon, mentioning, or in any way reflecting upon your allegation in paragraph 49 of the Cross-Claim.

RESPONSE:

DOCUMENT REQUEST NO. 9.

All documents supporting, related to, touching upon, mentioning, or in any way reflecting upon your allegation in paragraph 51 of the Cross-Claim.

RESPONSE:

DOCUMENT REQUEST NO. 10.

All documents supporting, related to, touching upon, mentioning, or in any way reflecting upon your allegation in paragraph 53 of the Cross-Claim.

RESPONSE:

DOCUMENT REQUEST NO. 11.

All documents supporting, related to, touching upon, mentioning, or in any way reflecting upon your allegation in paragraph 54 of the Cross-Claim.

RESPONSE:

DOCUMENT REQUEST NO. 12.

All documents supporting, related to, touching upon, mentioning, or in any way reflecting upon your allegation in paragraph 55 of the Cross-Claim.

RESPONSE:

DOCUMENT REQUEST NO. 13.

All documents supporting, related to, touching upon, mentioning, or in any way reflecting upon the costs and attorney's fees you have incurred in defending this lawsuit and bringing claims against the Landings Phase VII and Phase VIII Property Owners.

RESPONSE:

DOCUMENT REQUEST NO. 14.

All documents supporting, related to, touching upon, mentioning, or in any way reflecting upon your alleged damages in this litigation.

RESPONSE:

DOCUMENT REQUEST NO. 15.

All documents related to, touching upon, mentioning, or in any way reflecting upon any action you took in furtherance of the statement in Section 4(B) of the Phase VII or VIII Declarations that you would require the owners of all lots to become members of a non-profit corporation.

RESPONSE:

DOCUMENT REQUEST NO. 16.

All documents related to, touching upon, mentioning, or in any way reflecting upon any action you took in furtherance of the statement in Section 4(B) of the Phase VII or VIII Declarations that you would require the owners of all lots to become members of a non-profit corporation known as the Landings Common Area Association, Inc.

RESPONSE:

DOCUMENT REQUEST NO. 17.

All documents related to, touching upon, mentioning, or in any way reflecting a non-profit corporation known as the Landings Common Area Association, Inc.

RESPONSE:

DOCUMENT REQUEST NO. 18.

All documents related to, touching upon, mentioning, or in any way reflecting a non-profit corporation known as The Landings Property Owners Association, Inc.

RESPONSE:

DOCUMENT REQUEST NO. 19.

All documents related to, touching upon, mentioning, or in any way reflecting the “common properties of The Landings Phase VII and VIII”, as that phrase was used in the Initial Articles of Incorporation of The Landings Property Owners Association, Inc. filed with the Ohio Secretary of State.

RESPONSE:

DOCUMENT REQUEST NO. 20.

All documents related to, touching upon, mentioning, or in any way reflecting any communication between or with you and any of the Landings Defendants regarding the Landings Common Area Association, Inc.

RESPONSE:

DOCUMENT REQUEST NO. 21.

All documents related to, touching upon, mentioning, or in any way reflecting any communication between or with you and any of the Landings Defendants regarding The Landings Property Owners Association, Inc.

RESPONSE:

DOCUMENT REQUEST NO. 22.

All documents related to, touching upon, mentioning, or in any way reflecting any communication between or with you and any of the Landings Defendants regarding any homeowners' association.

RESPONSE:

DOCUMENT REQUEST NO. 23.

All documents related to, touching upon, mentioning, or in any way reflecting the Dam.

RESPONSE:

DOCUMENT REQUEST NO. 24.

All documents related to, touching upon, mentioning, or in any way reflecting the Lake.

RESPONSE:

DOCUMENT REQUEST NO. 25.

All documents related to, touching upon, mentioning, or in any way reflecting any closing for the sale of any lot to any of the Landings Defendants.

RESPONSE:

DOCUMENT REQUEST NO. 26.

All documents related to, touching upon, mentioning, or in any way reflecting any alleged acknowledgement by any of the Landings Defendants about a homeowners association.

RESPONSE:

DOCUMENT REQUEST NO. 27.

All documents related to, touching upon, mentioning, or in any way reflecting any alleged acknowledgement by any of the Landings Defendants about a requirement to pay \$200 a year.

RESPONSE:

DOCUMENT REQUEST NO. 28.

All documents related to, touching upon, mentioning, or in any way reflecting any alleged acknowledgement by any of the Landings Defendants about the Landings Common Area Association, Inc.

RESPONSE:

DOCUMENT REQUEST NO. 29.

All documents related to, touching upon, mentioning, or in any way reflecting any alleged acknowledgement by any of the Landings Defendants that the Landings Common Area Association, Inc. shall have the sole and exclusive control of the lake located on the land of the Developer and shall be responsible for its care and maintenance.

RESPONSE:

DOCUMENT REQUEST NO. 30.

All documents related to, touching upon, mentioning, or in any way reflecting any articles of incorporation for the Landings Common Area Association, Inc.

RESPONSE:

DOCUMENT REQUEST NO. 31.

All documents related to, touching upon, mentioning, or in any way reflecting any regulations for the Landings Common Area Association, Inc.

RESPONSE:

DOCUMENT REQUEST NO. 32.

All documents related to, touching upon, mentioning, or in any way reflecting any bylaws for the Landings Common Area Association, Inc.

RESPONSE:

DOCUMENT REQUEST NO. 33.

All documents related to, touching upon, mentioning, or in any way reflecting any tax returns for the Landings Common Area Association, Inc.

RESPONSE:

DOCUMENT REQUEST NO. 34.

All documents related to, touching upon, mentioning, or in any way reflecting any bank accounts for the Landings Common Area Association, Inc.

RESPONSE:

DOCUMENT REQUEST NO. 35.

All documents related to, touching upon, mentioning, or in any way reflecting any tax returns for The Landings Property Owners Association, Inc.

RESPONSE:

DOCUMENT REQUEST NO. 36.

All documents related to, touching upon, mentioning, or in any way reflecting any regulations for The Landings Property Owners Association, Inc.

RESPONSE:

DOCUMENT REQUEST NO. 37.

All documents related to, touching upon, mentioning, or in any way reflecting any bylaws for The Landings Property Owners Association, Inc.

RESPONSE:

DOCUMENT REQUEST NO. 38.

All documents related to, touching upon, mentioning, or in any way reflecting any bank accounts for The Landings Property Owners Association, Inc.

RESPONSE:

Respectfully submitted,

/s/ Stephen E. Chappellear

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CERTIFICATE OF SERVICE

I hereby certify that a true and accurate copy of the foregoing was served upon the following via electronic or regular mail this 12th day of October, 2023.

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/s/ Stephen E. Chappelear
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